

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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GREGORY JOHNSON,

Plaintiff

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER EDWARD CARRASCO-JIMENEZ
(shield # 016880) and DETECTIVE THOMAS MCHALE
(shield # 004937),**

Defendants.

Index No. _____

Purchased 1-3-19

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
January 3, 2019



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, New York 10022
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****GREGORY JOHNSON,**

Plaintiff,

Index No.**Verified Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER EDWARD CARRASCO-JIMENEZ
(shield # 016880) and DETECTIVE THOMAS MCHALE
(shield # 004937),**

Defendants.

Plaintiff GREGORY JOHNSON , by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff GREGORY JOHNSON was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.

4. At all times hereinafter mentioned, defendants, POLICE OFFICER EDWARD CARRASCO-JIMENEZ (shield # 016880) ("P.O. CARRASCO-JIMENEZ") and DETECTIVE THOMAS MCHALE (shield # 004937) ("DET. MCHALE"), were and are officers employed by Defendants.

BACKGROUND

5. On March 15, 2017, at approximately 6:30 a.m., in the vicinity of 250 East 176th Street in Bronx County, without just cause or provocation, P.O. CARRASCO-JIMENEZ and DET. MCHALE, officers with the NEW YORK CITY POLICE DEPARTMENT, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of a Controlled Substance in the Fourth Degree and related charges.
6. On or about March 15, 2017, a criminal complaint was issued at the directive of the Defendants and a criminal action against Plaintiff commenced. Plaintiff remained in custody until his release on or about March 29, 2017.
7. The criminal matter was terminated in favor of Plaintiff on October 11, 2017.

PROCEDURAL POSTURE

8. On November 29, 2018, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable. The Court granted Plaintiff's application to file a Late Notice of Claim on January 3, 2019.

9. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.
10. This action has been commenced within one year and ninety days after the causes of action accrued.
11. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: MALICIOUS PROSECUTION

12. Paragraphs 1-11 are incorporated by reference as though fully set forth herein.
13. In arresting Plaintiff, the Defendants acted with malice.
14. The Defendants lacked probable cause to arrest Plaintiff.
15. All charges pending against Plaintiff were dismissed and sealed on October 11, 2017.
16. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: VIOLATION OF CIVIL RIGHTS

17. Paragraphs 1-16 are incorporated by reference as though fully set forth herein.
18. P.O. CARRASCO-JIMENEZ and DET. MCHALE were at all times relevant, duly appointed and acting as police officers with NEW YORK CITY POLICE DEPARTMENT.
19. At all times mentioned herein, P.O. CARRASCO-JIMENEZ and DET. MCHALE were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
20. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of

Bronx County in the State of New York and brings this cause of action pursuant to 42

United States Code, Section 1983 and 42 United States Code, Section 1988.

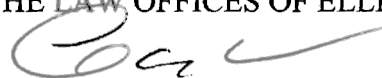
21. Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
22. On or about March 15, 2017, the Defendants, including P.O. CARRASCO-JIMENEZ and DET. MCHALE, while effectuating the seizure of Plaintiff, did search, seize, assault and commit a battery and grab the person of Plaintiff without a court authorized arrest warrant.
23. The Defendants, including P.O. CARRASCO-JIMENEZ and DET. MCHALE, did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested. The Defendants did not possess probable cause to arrest Plaintiff.
24. The above actions of the Defendants' resulted in Plaintiff being deprived of the following rights under the United States Constitution:
 - a. Freedom from assault to Plaintiff's person;
 - b. Freedom from battery to Plaintiff's person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process.
25. The Defendants subjected Plaintiff to such deprivations either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.
26. The direct and proximate result of the Defendants' acts is that Plaintiff has suffered

injuries of a psychological nature. Plaintiff was forced to endure pain, humiliation and suffering, all to Plaintiff's detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
January 3, 2019

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff

115 East 57th Street, 11th Floor

New York, NY 10022

212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****GREGORY JOHNSON,**

Plaintiff,

-against-

-----X **Index No.**Purchased: 1-3-19**VERIFICATION****THE CITY OF NEW YORK,
POLICE OFFICER EDWARD CARRASCO-JIMENEZ
(shield # 016880) and DETECTIVE THOMAS MCHALE
(shield # 004937),**

Defendants

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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
January 3, 2019



ELLIOT S. KAY